



Stephen Cooke <stevecooke.c@gmail.com>

Re: Addendum Rev. 3 - Smith and Smith Purchase from Cooke and Cooke 1/213 Morgan Street Merewether

9 messages

Stephen Cooke <stevecooke.c@gmail.com>

Mon, Aug 26, 2024 at 5:06 AM

To: Michelle Kent <michelle.kent@kentconveyancing.com.au>

Cc: Brooke Taylor <admin1@robinsonre.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>, Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>, Michelle Kent <michelle.kent@kentconveyancing.com.au>, Mike Flook <Mike@robinsonre.com.au>

Sorry, one additional revision;

"The Purchaser has instructed that they will not post-completion pursue the Vendor for any strata levies that are eventually struck for the period from January 1, 2024, to September 30, 2024. To safeguard against any such levies, \$3,027.48 shall be retained from the deposit by the agent, based on levies paid in 2023. The parties agree that the retention of this amount does not constitute or imply that levies for the period have been struck. For the purpose of this addendum, it is agreed that the Annual General Meeting (AGM) for 2024 and any strata levies or other decisions made at that AGM for the year 2024 will be deemed to have occurred by September 30, 2024, unless an actual AGM occurs before this date, in which case, the date of the AGM and its decisions will take precedence. Furthermore, this addendum shall terminate itself and have no further effect after September 30, 2024, **regardless of whether an AGM has occurred by that date.**"

On Mon, Aug 26, 2024 at 11:02 AM Stephen Cooke <stevecooke.c@gmail.com> wrote:

All, needed some additional tweaks;

The Purchaser has instructed that they will not post-completion pursue the Vendor for any strata levies that are eventually struck for the period from January 1, 2024, to September 30, 2024. To safeguard against any such levies, \$3,027.48 shall be retained from the deposit by the agent, based on levies paid in 2023. The parties agree that the retention of this amount does not constitute or imply that levies for the period have been struck. For the purpose of this addendum, it is agreed that the Annual General Meeting (AGM) for 2024 and any strata levies or other decisions made at that AGM for the year 2024 will be deemed to have occurred by September 30, 2024, unless an actual AGM occurs before this date, in which case, the date of the AGM and its decisions will take precedence. Furthermore, this addendum shall terminate itself and have no further effect after September 30, 2024, if no AGM has occurred by that date.

On Mon, Aug 26, 2024 at 10:10 AM Stephen Cooke <stevecooke.c@gmail.com> wrote:

Good morning Michelle,

I've reviewed the proposed agreement regarding the strata levies for the period from January 1, 2024, to September 30, 2024, and I wanted to raise a few concerns and questions:

1. **Necessity of the Agreement:** Given that any strata levies struck after the settlement would typically be the responsibility of the new owner, I'm unclear on why this agreement is necessary. It seems to me that, under standard practices, there shouldn't be a need for me to enter into an additional agreement covering these levies.
2. **Legal Clarity:** If the sale contract clearly states that the new owner assumes all responsibilities for levies from the date of settlement, wouldn't that cover any potential liabilities without requiring this side agreement?

3. **Potential Complications:** I'm concerned that introducing this agreement could unnecessarily complicate the sale process, especially since the buyer's lawyer has already suggested that their client will not pursue us for these levies after September 30, 2024. This makes me question the value of having such an agreement in the first place.

I understand that the purchaser has suggested retaining \$3,027.48 from the deposit based on levies paid in 2023. While I appreciate this suggestion as a means to safeguard my interests, I want to ensure that this retention is handled appropriately and does not create any unnecessary complications.

To reflect the purchaser's suggestion and ensure clarity, I am willing to agree to an addendum to the sale contract, incorporating the following legal wording:

"The Purchaser has instructed that they will not post-completion pursue the Vendor for any strata levies that are eventually struck for the period from January 1, 2024, to September 30, 2024. To safeguard against any such levies, \$3,027.48 shall be retained from the deposit by the agent, based on levies paid in 2023. The parties agree that the retention of this amount does not constitute or imply that levies for the period have been struck. For the purpose of this addendum, it is agreed that the Annual General Meeting (AGM) for 2024 and any strata levies struck for the year 2024 will be deemed to have occurred by September 30, 2024, regardless of whether these events have actually taken place by that date. Furthermore, this addendum shall terminate itself and have no further effect after September 30, 2024."

Please ensure that this wording is incorporated into the sale contract as an addendum and confirm that it is legally binding after approval from Peter. We also need the other side's agreement and for them to be made aware that, with the addition of the proposed addendum to facilitate the sale, I will not be agreeing to a final property settlement until after September 30, 2024. It remains my preference to advance the sale without any side agreement at all to avoid further complicating my and Heather's lives, but I also have to ensure our interests are not compromised in the sale of the property.

Thank you for your assistance, and I look forward to your confirmation.

Best regards,
Stephen

On Sat, Aug 24, 2024 at 11:31 AM Stephen Cooke <stevecooke.c@gmail.com> wrote:

All. I do not want to be made responsible for levies related to repair of the exterior of the home especially when I made it quite clear at first outset my wishes to address this issue but ultimately having to forego due to opposition from the other side to address this issue.

I think Peter suggestion address this issue but I may need advice in this regard.

Stephen

On Sat, 24 Aug 2024, 7:24 am Mike Flook, <Mike@robinsonre.com.au> wrote:

Thanks Stephen

Mike Flook | Licensed Real Estate Agent

M 0438 770 426 | **D** (02) 4902 7221

[Facebook.com/MikeFlookRobinsonProperty/](https://www.facebook.com/MikeFlookRobinsonProperty/) [Instagram.com/Mike.Flook/](https://www.instagram.com/Mike.Flook/) au.linkedin.com/in/michael-flook-a4bb842b



2014-2023 – 9 years ranked as Merewether's #1 Agent

See my work – <https://www.ratemyagent.com.au/real-estate-agent/michael-flook-bi689/sales/overview>

From: Stephen Cooke <stevecooke.c@gmail.com>

Sent: Saturday, August 24, 2024 2:47 AM

To: Brooke Taylor <admin1@robinsonre.com.au>; Mike Flook <Mike@robinsonre.com.au>; Matthew Shepherd <mshepherd@ramsdenlaw.com.au>;
Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>; Michelle Kent <michelle.kent@kentconveyancing.com.au>

Subject: Fwd: FW: Smith and Smith Purchase from Cooke and Cooke 1/213 Morgan Street Merewether

Hi Brooke, Mike,

Please take note of below.

Regards,

Stephen

----- Forwarded message -----

From: **Stephen Cooke** <stevecooke.c@gmail.com>

Date: Sat, Aug 24, 2024 at 2:20 AM

Subject: Re: FW: Smith and Smith Purchase from Cooke and Cooke 1/213 Morgan Street Merewether

To: Michelle Kent <michelle.kent@kentconveyancing.com.au>

Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>, Shaun Phipps <shaun.phipps@kentconveyancing.com.au>, Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>, <clients@justfund.com.au>

Hi Michelle,

I've just seen your earlier email from 4:27 PM today. I missed your message because I got pulled away with work. When you followed up at 4:54 PM, it was with another ongoing email exchange. As I hadn't yet seen the message, I responded negatively, as it appeared to me that you were forwarding a request from the purchaser to move in without payment or without addressing my concerns.

Having seen this email now, I want to confirm that I am agreeable to Peter Fairfield's proposal sent on Friday, August 23, 2024 4:12 PM, and the process for the discharge of the mortgage. Can this be actioned so that the buyers can move in?

Best regards,

Stephen

On Fri, Aug 23, 2024 at 4:27 PM Michelle Kent <michelle.kent@kentconveyancing.com.au> wrote:

Hi Stephen

Please review email chain below and provide your instructions as to whether this is satisfactory.

The settlement can also not proceed unless the caveat is withdrawn contemporaneously with the discharge of mortgage from Westpac and the transfer to the purchaser.

Kind regards

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facebook

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linkedin

Image removed by sender.
instagram

Michelle Kent

Licensee

Immediate Past President AIC National

AIC NSW Councillor

KENT Conveyancing

Image removed by sender.
mobilePhone 02 4941 7474
0423 493 251

Image removed by sender.
emailAddress michelle.kent@kentconveyancing.com.au

Image removed by sender.
address 63 &63A Main Road Boolaroo, 2284
2/102 Tudor Street Hamilton 2303
PO Box 190 Boolaroo NSW 2284

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From: Peter Fairfield <p.fairfield@ubklawyers.com.au>

Sent: Friday, August 23, 2024 4:12 PM

To: Michelle Kent <michelle.kent@kentconveyancing.com.au>

Cc: greg@hollispartners.com.au; admin1@robinsonre.com.au; Eliza Trimble <eliza@spectrumsolutions.com.au>; Shaun Phipps <shaun.phipps@kentconveyancing.com.au>; Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>

Subject: RE: Smith and Smith Purchase from Cooke and Cooke 1/213 Morgan Street Merewether

Dear Michelle,

Further to the below email, apart from the logistical difficulty of having four people sign a deed of release by 5:00pm today, my client instructs that they will not post-completion pursue your clients for any strata levies that are eventually struck for the period 1 January 2024 to 30 September 2024.

In these circumstances please confirm that settlement will take place this afternoon.

Kind regards,

HELEN HANNON FOR

PETER FAIRFIELD



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Level 3, [845 Pacific Highway](#)

[CHATSWOOD NSW 2067](#)

All Correspondence to:

P.O Box 427, GORDON NSW 2072

P: 9440 6600

We are now at

Level 3, [845 Pacific Highway Chatswood NSW 2067](#)

(within the offices of LBW & Partners)

Our PO Box 427 Gordon NSW 2072 and telephone 02 9440 6600 remain the same.

Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>

To: Stephen Cooke <stevecooke.c@gmail.com>

Mon, Aug 26, 2024 at 6:03 AM

This this F%\$^& serious



Meagan Burke

Conveyancing Concierge

KENT Conveyancing



02 4941 7474

0481 589 927

[conveyancingassistant@
kentconveyancing.com.au](mailto:conveyancingassistant@kentconveyancing.com.au)

63 & 63A Main Road Boolaroo, 2284

2/[102 Tudor Street Hamilton 2303](#)

PO Box 190 Boolaroo NSW 2284

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2014-2023 – 9 years ranked as Merewether's #1 Agent

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Michelle Kent

Licensee

Immediate Past President AIC National

AIC NSW Councillor

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From: Peter Fairfield <p.fairfield@ubklawyers.com.au>

Sent: Friday, August 23, 2024 4:12 PM

To: Michelle Kent <michelle.kent@kentconveyancing.com.au>

Cc: greg@hollispartners.com.au; admin1@robinsonre.com.au; Eliza Trimble <eliza@spectrumsolutions.com.au>; Shaun Phipps <shaun.phipps@kentconveyancing.com.au>; Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>

Subject: RE: Smith and Smith Purchase from Cooke and Cooke 1/[213 Morgan Street Merewether](#)

Dear Michelle,

Further to the below email, apart from the logistical difficulty of having four people sign a deed of release by 5:00pm today, my client instructs that they will not post-completion pursue your clients for any strata levies that are eventually struck for the period 1 January 2024 to 30 September 2024.

In these circumstances please confirm that settlement will take place this afternoon.

Kind regards,

HELEN HANNON FOR

PETER FAIRFIELD

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[Quoted text hidden]

Stephen Cooke <stevecooke.c@gmail.com>

Mon, Aug 26, 2024 at 6:07 AM

To: Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>

Hi Megan, did you intend to address this to me? Can you call me.

[Quoted text hidden]

Stephen Cooke <stevecooke.c@gmail.com>

Mon, Aug 26, 2024 at 6:12 AM

To: Michelle Kent <michelle.kent@kentconveyancing.com.au>

Cc: Brooke Taylor <admin1@robinsonre.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>, Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>, Michelle Kent <michelle.kent@kentconveyancing.com.au>, Mike Flook <Mike@robinsonre.com.au>

I will pay to have this added.

Regards,

Stephen

[Quoted text hidden]

Stephen Cooke <stevecooke.c@gmail.com>

Mon, Aug 26, 2024 at 10:21 AM

To: Shaun Phipps <shaun.phipps@kentconveyancing.com.au>

Cc: Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Hi Meagan and Shaun,

Following our conversation this afternoon, I'm proposing the following Addendum be added to the contract of sale to address the issue Michelle raised in the attached document.

It appears the buyer is incurring storage costs due to the delay in settlement, which is unfortunate. The sooner we can implement a solution, the better.

Best regards,

Stephen Cooke

[Quoted text hidden]



Thursday August 22 2024 s184 Cert.pdf
50K

Michelle Kent <michelle.kent@kentconveyancing.com.au>

Mon, Aug 26, 2024 at 10:50 AM

To: Stephen Cooke <stevecooke.c@gmail.com>

Cc: Brooke Taylor <admin1@robinsonre.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>, Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>, Mike Flook <Mike@robinsonre.com.au>

Stephen response below.. are you happy with this?

It is agreed that the contract is amended as set out in your below email.

Please confirm that settlement will proceed on 27 August 2024. Once this has been done, we will update settlement figures in PEXA for tomorrow.

Sent from my iPhone

On 26 Aug 2024, at 12:13 PM, Stephen Cooke <stevecooke.c@gmail.com> wrote:

[Quoted text hidden]

Stephen Cooke <stevecooke.c@gmail.com>

Tue, Aug 27, 2024 at 10:00 AM

To: Michelle Kent <michelle.kent@kentconveyancing.com.au>

Cc: Brooke Taylor <admin1@robinsonre.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>, Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>

Please clarify if this is being applied to the contract..

[Quoted text hidden]

Michelle Kent <michelle.kent@kentconveyancing.com.au>

Tue, Aug 27, 2024 at 10:10 AM

To: Stephen Cooke <stevecooke.c@gmail.com>

This has been acknowledged by the other side. I will send you their response email wording.

Kind regards



Michelle Kent

Licensee

Immediate Past President AIC National

AIC NSW Councillor

KENT Conveyancing



02 4941 7474

0423 493 251

michelle.kent@kentconveyancing.com.au

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From: Peter Fairfield <p.fairfield@ubklawyers.com.au>

Sent: Friday, August 23, 2024 4:12 PM

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Subject: RE: Smith and Smith Purchase from Cooke and Cooke 1/[213 Morgan Street Merewether](#)

Dear Michelle,

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In these circumstances please confirm that settlement will take place this afternoon.

Kind regards,

HELEN HANNON FOR

PETER FAIRFIELD

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[Quoted text hidden]

Michelle Kent <michelle.kent@kentconveyancing.com.au>

To: Stephen Cooke <stevecooke.c@gmail.com>

Cc: Brooke Taylor <admin1@robinsonre.com.au>, Matthew Shepherd <mshepherd@ramsdenlaw.com.au>, Conveyancing Assistant <conveyancingassistant@kentconveyancing.com.au>

Tue, Aug 27, 2024 at 10:16 AM

Dear Michelle

See attached "Receipt" duly signed by my clients.

Please confirm that settlement will proceed at 12 noon today.

Kind regards



Michelle Kent

Licensee

Immediate Past President AIC National

AIC NSW Councillor

KENT Conveyancing



02 4941 7474

0423 493 251

michelle.kent@kentconveyancing.com.au

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From: Stephen Cooke <stevecooke.c@gmail.com>

Sent: Tuesday, August 27, 2024 4:00 PM

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PETER FAIRFIELD

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